

FEDERAL MARITIME COMMISSION

Docket No. 17-09

FIAT CHRYSLER AUTOMOBILES NV, FCA US LLC, AND FCA ITALY S.P.A.

v.

**WALLENIOUS WILHELMSSEN LOGISTICS AS, WALLENIOUS WILHELMSSEN
LOGISTICS AMERICAS LLC, EUKOR CAR CARRIERS INC.,
NIPPON YUSEN KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC.,
MITSUI O.S.K. LINES, LTD., MOL (AMERICA) INC.,
KAWASAKI KISEN KAISHA, LTD., "K" LINE AMERICA, INC.,
COMPAÑÍA SUD AMERICANA DE VAPORES S.A., AND HOËGH AUTOLINERS AS**

**NOTICE OF RESPONDENTS WALLENIOUS WILHELMSSEN LOGISTICS AS,
AND WALLENIOUS WILHELMSSEN LOGISTICS AMERICAS LLC,
OF WITHDRAWAL OR FORBEARANCE OF OPPOSITIONS**

TO: Secretary
Federal Maritime Commission
800 North Capitol Street, N.W.
Washington, D.C. 20573

PLEASE TAKE NOTICE that, upon approval of the May 13, 2019 joint motion of complainants Fiat Chrysler Automobiles NV, FCA US LLC, and FCA Italy S.P.A (collectively referred to herein as "FCA") and respondents Wallenius Wilhelmsen Ocean AS (formerly known as Wallenius Wilhelmsen Logistics AS) and Wallenius Wilhelmsen Logistics Americas LLC (collectively referred to herein as "WWL") for (1) approval of the confidential settlement agreement and release (the "Settlement Agreement"), (2) dismissal of the complaint against WWL with prejudice, and (3) an order that the Settlement Agreement be held

confidentially by the presiding officer and the Commission, and barred from public view or disclosure, WWL withdraws the following from consideration:

1. WWL's April 9, 2019 motion for clarification of the confidentiality provisions of the April 2, 2019 order and initial decision approving a confidential settlement between FCA and respondents Mitsui O.S.K. Lines, Ltd. and MOL (America) Inc. (collectively, "MOL");
2. WWL's April 10, 2019 amended motion for clarification of the confidentiality provisions of the April 2, 2019 order and initial decision approving a confidential settlement between FCA and MOL;
3. WWL's April 11, 2019 partial opposition to the joint motion of FCA and Compañía Sud Americana de Vapores S.A. ("CSAV") for approval of settlement agreement, dismissal with prejudice of the complaint against CSAV, and treatment of settlement agreement as confidential; and,
4. WWL's April 23, 2019 partial opposition to the joint motion of FCA and Kawasaki Kisen Kaisha, Ltd. and "K" Line America, Inc. (collectively, "'K' Line") for approval of settlement agreement, dismissal with prejudice of the complaint against "K" Line, and treatment of settlement agreement as confidential.

PLEASE TAKE FUTHER NOTICE that, pending approval of the May 13, 2019 joint motion of FCA and WWL for (1) approval of the confidential settlement agreement and release (the "Settlement Agreement"); (2) dismissal of the complaint against WWL with prejudice; and (3) an order that the Settlement Agreement be held confidentially by the presiding officer and the Commission, and barred from public view or disclosure, WWL, without prejudice, foregoes filing a partial opposition to the joint motion of FCA and Høegh Autoliners

AS ("Höegh") for approval of settlement agreement, dismissal with prejudice of the complaint against "K" Line, and treatment of settlement agreement as confidential.

DATED: May 14, 2019

Respectfully submitted,



Roberto A. Rivera-Soto
Jason A. Leckerman
BALLARD SPAHR LLP
210 Lake Drive East – Suite 200
Cherry Hill, New Jersey 08002-1163
Telephone: (856) 761-3400
riverasotor@ballardspahr.com
leckermanj@ballardspahr.com

Paul M. Heylman
SAUL EWING ARNSTEIN & LEHR LLP
1919 Pennsylvania Av., NW. - Suite 550
Washington, D.C. 20006-3434
Telephone: (202) 343-3422
paul.heyman@saul.com

*Counsel for respondents Wallenius Wilhelmsen
Ocean AS (formerly known as Wallenius
Wilhelmsen Logistics AS), and Wallenius
Wilhelmsen Logistics America LLC*

CERTIFICATE OF SERVICE.

I hereby certify that, on May 14, 2019, true and correct copies of the foregoing notice of respondents' Wallenius Wilhelmsen Ocean AS (formerly known as Wallenius Wilhelmsen Logistics AS) and Wallenius Wilhelmsen Logistics Americas LLC of withdrawal or forbearance of oppositions was filed electronically with the Secretary of the Federal Maritime Commission, and electronic copies thereof were sent to all counsel of record in Docket No. 17-09.

DATED: May 14, 2019



Roberto A. Rivera-Soto